

Opinion of the Court

cial acts during his tenure in office. We consider the scope of a President’s immunity from criminal prosecution.

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From January 2017 until January 2021, Donald J. Trump served as President of the United States. On August 1, 2023, a federal grand jury indicted him on four counts for conduct that occurred during his Presidency following the November 2020 election. The indictment alleged that after losing that election, Trump conspired to overturn it by spreading knowingly false claims of election fraud to obstruct the collecting, counting, and certifying of the election results.

According to the indictment, Trump advanced his goal through five primary means. First, he and his co-conspirators “used knowingly false claims of election fraud to get state legislators and election officials to . . . change electoral votes for [Trump’s] opponent, Joseph R. Biden, Jr., to electoral votes for [Trump].” App. 185, Indictment ¶10(a). Second, Trump and his co-conspirators “organized fraudulent slates of electors in seven targeted states” and “caused these fraudulent electors to transmit their false certificates to the Vice President and other government officials to be counted at the certification proceeding on January 6.” *Id.*, at 186, ¶10(b). Third, Trump and his co-conspirators attempted to use the Justice Department “to conduct sham election crime investigations and to send a letter to the targeted states that falsely claimed that the Justice Department had identified significant concerns that may have impacted the election out-

liger III, John S. Moran, and Michael L. Francisco; for the Guardian Defense Fund, Inc., by George R. Wentz, Jr., Allen J. Shoff, and Mauricio Cardona; for the Puerto Rico House of Representatives by Emil Rodríguez Escudero and Jorge Martínez Luciano; for David Boyle, pro se; for Claire Finkelstein et al. by Richard W. Painter, pro se; for Gavin M. Wax et al. by Edward Andrew Paltzik and Serge Krimnus; and for Matthew D. Wilson, pro se.